

Madhu Tiwari v. State of U.P. — liberty to appeal final electricity assessment

Allahabad High Court · Division Bench · 31 July 2017 · Writ-C No. 33311 of 2017 · Writ - C No. 33311 of 2017 · **Writ disposed; liberty to appeal under Supply Code, 2005.**

HEADNOTE

Where a final assessment of electricity dues had already been made, and copies were furnished to the consumer only at the hearing, the Division Bench disposed of the writ with liberty to file an appeal or take other appropriate steps under the Electricity Supply Code, 2005, without examining the assessment on merits.

FACTUAL SUMMARY

Smt. Madhu Tiwari invoked the Allahabad High Court's writ jurisdiction against the State of U.P. and the electricity authorities. At the hearing, counsel for the Electricity Department produced documents showing that a final assessment of electricity dues had been made against her. Her counsel submitted that she had never been intimated of that assessment and therefore could not respond. Photostat copies of the assessment papers were then supplied to her in court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::assessment

final-assessment-appeal

HOLDING

A writ challenging electricity dues is not decided on merits once a final assessment has been completed; the consumer, having been given the assessment papers, is left to file an appeal or take other appropriate steps under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Where a final assessment of electricity dues had already been made, and copies were furnished to the consumer only at the hearing, the Division Bench disposed of the writ with liberty to file an appeal or take other appropriate steps under the Electricity Supply Code, 2005, without examining the assessment on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS INTIMATED OF THE FINAL ASSESSMENT BEFORE THE HEARING

¶ 1

NOT DECIDED — MERITS OF THE FINAL ASSESSMENT OF ELECTRICITY DUES

¶ 1